

CHAPTER VI.

Demurrer.

Demurrer must be within fourteen days after appearance.

If the Defendant is advised that the Plaintiff's bill is, for any thing apparent on the face of it, bad in law, and the Plaintiff therefore not entitled to the relief sought by the bill, he may, as we have seen, demur. This demurrer must be filed, and an office copy served on the Plaintiff's Solicitor within fourteen days from the time of appearance entered. In counting this time, the day of appearance is exclusive and the day of demurring inclusive. When the demurrer is filed, either party may set it down with the Registrar to be argued on præcipe. Eight days' notice must then be given to the opposite party of the day of argument, and care must therefore be taken, in setting down the demurrer, to have it set down for a day which will leave time for the eight days' notice.

The following are the rules governing this practice :—
1850. A Defendant may demur alone to any bill, within four-
XXVI. teen days after his appearance thereto, but not afterwards.
Demurrer, four- It needs not be entered with the Registrar; but, upon the
teen days. filing thereof by a defendant, either party is to be at liber-
Setting down. ty to set the same down for argument immediately.

The former practice was to allow the demurrer, unless the Plaintiff set it down to be argued within a limited time.

The Rule, under which the eight days' notice is required, is the 158th Order, of January, 1845, which, as so far as it is consistent with the New Orders, is still in force. It is as follows :—The parts italicised are inconsistent with the New Orders, and therefore not in force.

Order of 1851. [That no subpoena to hear judgment shall be sued
Eight days out in any case but] the party setting down the [plea or]
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